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February 11, 2025

By: Daniels

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 13.1, as amended by Section 1, Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2024, Section 13.1), which relates to required service of minimum percentage of sentence; modifying statutory references to certain criminal offenses; modifying name of certain unlawful act; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 13.1, as amended by Section 1, Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2024, Section 13.1), is amended to read as follows:

Section 13.1. Persons convicted of:

1. First degree murder as ~~defined~~ provided for in Section 701.7
of this title;

2. Second degree murder as ~~defined by~~ provided for in Section 701.8 of this title;

3. Manslaughter in the first degree as ~~defined by~~ provided for
in Section 711 of this title;

4. Poisoning with intent to kill as ~~defined by~~ provided for in
Section 651 of this title;

1 5. Shooting with intent to kill, use of a vehicle to facilitate
2 use of a firearm, crossbow or other weapon, assault, battery, or
3 assault and battery with a deadly weapon or by other means likely to
4 produce death or great bodily harm, as provided for in Section 652
5 of this title;

6 6. Assault with intent to kill as provided for in Section 653
7 of this title;

8 7. Conjoint robbery as ~~defined by~~ provided for in Section 800
9 of this title;

10 8. Robbery with a dangerous weapon as ~~defined~~ provided for in
11 Section 801 of this title;

12 9. First degree robbery as ~~defined~~ provided for in Section 797
13 of this title;

14 10. First degree rape as provided for in Section 1111~~7~~ or 1114
15 ~~or 1115~~ of this title;

16 11. First degree arson as ~~defined~~ provided for in Section 1401
17 of this title;

18 12. First degree burglary as provided for in Section ~~1436~~ 1431
19 of this title;

20 13. Bombing as ~~defined~~ provided for in Section 1767.1 of this
21 title;

22 14. Any crime against a child as provided for in Section 843.5
23 of this title;

1 15. Forcible sodomy as ~~defined~~ provided for in Section 888 of
2 this title;

3 16. Child ~~pornography~~ sexual abuse material or aggravated child
4 ~~pornography~~ sexual abuse material as ~~defined~~ provided for in Section
5 1021.2, 1021.3, 1024.1, 1024.2, or 1040.12a of this title;

6 17. Child sex trafficking as defined in Section 1030 of this
7 title;

8 18. Lewd molestation of a child as ~~defined~~ provided for in
9 Section 1123 of this title;

10 19. Abuse of a vulnerable adult as defined in Section 10-103 of
11 Title 43A of the Oklahoma Statutes;

12 20. Aggravated trafficking as provided for in subsection C of
13 Section 2-415 of Title 63 of the Oklahoma Statutes;

14 21. Aggravated assault and battery as provided for in Section
15 646 of this title upon any person defending another person from
16 assault and battery; or

17 22. Human trafficking as ~~provided for~~ defined in Section 748 of
18 this title,
19 shall be required to serve not less than eighty-five percent (85%)
20 of any sentence of imprisonment imposed by the judicial system prior
21 to becoming eligible for consideration for parole. Persons
22 convicted of these offenses shall not be eligible for earned credits
23 or any other type of credits which have the effect of reducing the
24

1 length of the sentence to less than eighty-five percent (85%) of the
2 sentence imposed.

3 SECTION 2. This act shall become effective November 1, 2025.

4 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
5 February 11, 2025 - DO PASS
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